

RIGUERO v. MENDEZ

23CV46995

DEFENDANT'S MOTION TO SET ASIDE DEFAULT

Plaintiff's complaint seeks to remove the executor of the Estate of Rachel Gloria Mendez and recover memorial and funeral expenses.

The Complaint was filed October 16, 2023, service was accomplished October 25, 2023, and default was entered November 27, 2023. Defendant's Motion to Set Aside Default was filed on November 29, 2023.

California Code of Civil Procedure ("CCP") Section 473.5 authorizes the court to set aside a default or default judgment on such terms as may be just and to allow the defendant to defend the action on a finding that the defendant's motion to set aside the default or default judgment was made within the period permitted by CCP § 473.5(a), and that defendant's lack of actual notice of the action in time to defend was not caused by his or her avoidance of service of summons or inexcusable neglect.

An evaluation of an attorney's neglect under CCP § 473 involves a consideration of the reasonableness of the defaulting attorney's conduct (see *Dockter v. City of Santa Ana* (1968) 261 Cal.App.2nd 69, 75) and of the conduct of the attorney taking the default (e.g., *Smith v. Los Angeles Bookbinders Union* (1955) 133 Cal.App.2nd 486, 500). The law looks with disfavor upon a party who, regardless of the merits of his case, attempts to take advantage of the mistake, surprise, inadvertence, or neglect of his adversary. Thus, the "quiet speed" of a plaintiff's counsel in seeking a default has been deemed a sufficient ground for setting aside a default under CCP § 473. (*Robinson v. Varela* (1977) 67 Cal.App.3rd 611, 616-7.)

Furthermore, plaintiff's non-opposition provides additional support to grant the motion. The court is entitled, but not required, to consider lack of opposition to be an admission the motion is meritorious. (*Sexton v. Superior Court* (1997) 58 Cal.App.4th 1403, 1410.)

Based on the foregoing, defendant's Motion to Set Aside Default is **GRANTED**.

The Clerk shall provide notice of this Ruling to the parties forthwith. Defendant to submit a formal order pursuant to Rule of Court 3.1312 in conformity with this ruling.